

Krishna Murari Gupta v. State of U.P.

Allahabad High Court · Division Bench · 12 August 2024 · 2024:AHC:130243-DB · Writ-C No. 22958 of 2024 · **Writ disposed; petitioner to apply afresh under Clause 4.40.**

HEADNOTE

A civil writ was disposed of by directing the petitioner to file a fresh application under Clause 4.40 of the U.P. Electricity Supply Code, 2005, within two weeks, and by directing the respondent authorities to act on that application expeditiously. The Court did not grant or refuse connection or other supply relief on the merits.

FACTUAL SUMMARY

The petitioner, Krishna Murari Gupta, filed Writ-C No. 22958 of 2024 in the Allahabad High Court against the State of Uttar Pradesh and four others. Counsel for the petitioner and for the respondents, including the Chief Standing Counsel, were heard. The Division Bench disposed of the matter on a one-page order that does not record the underlying supply dispute, the facts of any connection or billing claim, or the relief originally sought in the writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.40

fresh application under Clause 4.40

HOLDING

The petitioner was directed to file a fresh application as per Clause 4.40 of the U.P. Electricity Supply Code, 2005, within two weeks; the respondent authorities were directed to act on that application expeditiously; the writ was disposed of without a merits grant or refusal of supply relief. ¶ 2-4

PRINCIPLE TAGS

relegate-to-statutory-remedy

A civil writ was disposed of by directing the petitioner to file a fresh application under Clause 4.40 of the U.P. Electricity Supply Code, 2005, within two weeks, and by directing the respondent authorities to act on that application expeditiously.. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNDERLYING ELECTRICITY CLAIM

The Court did not examine the facts or grant or refuse connection or other supply relief; it only directed a fresh Clause 4.40 application and expedition. ¶ 2-4